

Court No. - 3

Case :- WRIT - C No. - 14444 of 2013

Petitioner :- Smt. Dujiya

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Raj Karan Yadav

Respondent Counsel :- C.S.C.,A.L. Yadav

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

Heard Sri Raj Karan Yadav, learned counsel appearing for the petitioner and Sri A.L. Yadav, learned counsel appearing for the respondent no. 2.

The case of the petitioner is that for the purpose of irrigation she had taken electricity connection to run a tube-well and had paid for erection of pole for supply of electricity. The present grievance is that the respondent no. 2 is now giving electricity connection to other consumers from the same cable and accordingly the petitioner apprehends that the supply of electricity to her tube-well will get affected.

Sri A.L. Yadav, learned counsel appearing for the respondent no. 2 placed reliance on Clause 4.29 of the U.P. Electricity Supply Code, 2005 and on perusal of the said provision we find that supply of electricity to other consumers from the connection given to the petitioner is permissible.

We, therefore, find no defect in conduct of the respondent no. 2 in supply of the electricity to other consumers from the connection given to the petitioner. However, it is directed that the respondent no. 2 shall ensure that while doing so, supply of electricity to petitioner is not affected.

The writ petition is accordingly disposed of.

Order Date :- 14.3.2013.....M/A.